**UNITED STATES DISTRICT COURT**
**SOUTHERN DISTRICT OF FLORIDA**

CASE NO.: 23-CV-81027-MIDDLEBROOKS/Matthewman

DALIA DIPPOLITO,

Petitioner,

v.

FLORIDA DEPARTMENT OF CORRECTIONS,

Respondent.
_____/

**ORDER ADOPTING REPORT OF MAGISTRATE JUDGE**

THIS CAUSE comes before the Court on Magistrate Judge William Matthewman's Report, issued on April 22, 2025. (DE 17). The Report recommends denying Petitioner Dalia Dippolito's Petition for Writ of Habeas Corpus pursuant to 28 U.S.C. § 2254. (*Id.*). Petitioner filed timely Objections to the Report. (DE 18).

I have conducted a *de novo* review of the Report, objections, and the record as a whole. Upon review, I agree with Magistrate Judge Matthewman's conclusion that Ms. Dippolito's habeas petition should be denied. Further, I agree with the Report's finding that no certificate of appealability should issue.

Accordingly, it is **ORDERED AND ADJUDGED** that:

(1) Petitioner's Objections to the Magistrate's Report (DE 18) are **OVERRULED**.

(2) Magistrate Judge Matthewman's Report (DE 17) is hereby **ADOPTED**.

(3) Petitioner's *pro se* Petition for Writ of Habeas Corpus pursuant to 28 U.S.C. § 2254 (DE 1) is **DENIED.**

(4) A Certificate of Appealability is **DENIED**.

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(5) Final judgment will be entered by separate Order.

**SIGNED** in Chambers in West Palm Beach, Florida, this 7 day of May 2025.

DONALD M. MIDDLEBROOKS
UNITED STATES DISTRICT JUDGE

Copies to: Magistrate Judge William Matthewman;
Counsel of Record